

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 860

Introduced by Bostar, 29.

Read first time January 08, 2026

Committee:

1 A BILL FOR AN ACT relating to behavioral health services; to amend
2 section 71-801, Revised Statutes Cumulative Supplement, 2024; to
3 require the Department of Health and Human Services to create a
4 program to provide behavioral health services to individuals under
5 twenty-one years of age as prescribed; and to repeal the original
6 section.

7 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 71-801, Revised Statutes Cumulative Supplement,
2 2024, is amended to read:

3 71-801 Sections 71-801 to 71-830, sections 2 to 3 of this act, and
4 the Certified Community Behavioral Health Clinic Act shall be known and
5 may be cited as the Nebraska Behavioral Health Services Act.

6 **Sec. 2.** (1) No later than January 1, 2027, the Department of Health
7 and Human Services shall establish a program that provides access and
8 services for individuals under twenty-one years of age who are
9 experiencing complex behavioral health care needs.

10 (2) The department shall ensure that: (a) The program addresses the
11 behavioral health care of individuals under twenty-one years of age who
12 have complex, multisystem needs, with the goals of supporting families in
13 the community and preventing institutionalization and out-of-home care
14 placement; and (b) care management under the program is delivered
15 according to the needs of the individual and the individual's family.

16 **Sec. 3.** (1) The department shall provide the following services
17 within the program described in section 2 of this act, including, but not
18 limited to:

- 19 (a) Mobile response and stabilization;
20 (b) Intensive home-based treatment;
21 (c) Inpatient and outpatient care;
22 (d) Psychiatric residential treatment facility care;
23 (e) Substance use disorder treatment;
24 (f) Psychiatric care; and
25 (g) Developmental disability care.

26 (2) Care coordination shall be provided through the behavioral
27 health regions, as determined by the department. The department may
28 procure a single, statewide managed care plan that builds a sufficient
29 provider network to ensure access to behavioral health services,
30 including residential treatment and home and community-based services, in
31 order to provide a full continuum of behavioral health care. The

1 department or a managed care organization may manage administrative care
2 coordination, utilization management, and quality improvement efforts
3 under this section.

4 (3) The department may adopt and promulgate rules and regulations to
5 implement sections 2 to 3 of this act and if necessary, shall submit to
6 the federal Centers for Medicare and Medicaid Services, a state plan
7 amendment, a waiver request, or an application for other federal approval
8 necessary to provide reimbursement through the medical assistance program
9 for the behavioral health care services described in this section.

10 **Sec. 4.** Original section 71-801, Revised Statutes Cumulative
11 Supplement, 2024, is repealed.